

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
FERNANDO CASTILLO LUNA

Plaintiff,

-against-

POLICE OFFICER JIMMY ROMERO – SHIELD # 5558,
POLICE OFFICER FRANCESCO SCALICI – SHIELD #
7889, POLICE OFFICER SAJJAD ASAR – SHIELD
16889, SERGEANT HILTON JEANPIERRE – SHIELD #
1205, and “JOHN DOE” – Police Officers as yet
unidentified,
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Great Neck, New York
September 5, 2023



JACK A. YANKOWITZ, ESQ.
THE YANKOWITZ LAW FIRM, P.C.
Attorneys for Plaintiff
FERNANDO CASTILLO LUNA
175 East Shore Road
Great Neck, New York 11023
(516) 622-6200
Our File No. 9428 -22

Index No.:
Date Purchased:

SUMMONS

Plaintiffs designate KINGS
County as the place of trial.

The basis of venue is:
PLACE OF OCCURRENCE

Plaintiffs reside at:
1103 East 34 Street,
Brooklyn, NY 11210
County of Kings

Defendants:

POLICE OFFICER
JIMMY ROMERO – SHIELD #5558
C/O New York City Police Department 88th Precinct and 1 Police Plaza
298 Classon Avenue New York, NY 10013
Brooklyn, New York 11205

POLICE OFFICER
JIMMY ROMERO – SHIELD #5558
c/o THE COMPTROLLER OF THE CITY OF NEW YORK
1 Centre Street, Room 1200
New York, New York 10007

POLICE OFFICER
FRANCESCO SCALICI – SHIELD #7889
C/O New York City Police Department 81st Precinct
30 Ralph Avenue
Brooklyn, New York 11221

and 1 Police Plaza
New York, NY 10013

POLICE OFFICER
FRANCESCO SCALICI – SHIELD #7889
c/o THE COMPTROLLER OF THE CITY OF NEW YORK
1 Centre Street, Room 1200
New York, New York 10007

POLICE OFFICER SAJJAD ASAR – SHIELD # 16889
C/O New York City Police Department 81st Precinct
30 Ralph Avenue
Brooklyn, New York 11221

and 1 Police Plaza
New York, NY 10013

POLICE OFFICER SAJJAD ASAR – SHIELD # 16889
c/o THE COMPTROLLER OF THE CITY OF NEW YORK
1 Centre Street, Room 1200
New York, New York 10007

SERGEANT HILTON JEANPIERRE – SHIELD # 1205
C/O New York City Police Department 81st Precinct
30 Ralph Avenue
Brooklyn, New York 11221

and

1 Police Plaza
New York, NY 10013

SERGEANT HILTON JEANPIERRE – SHIELD # 1205
c/o THE COMPTROLLER OF THE CITY OF NEW YORK
1 Centre Street, Room 1200
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

VERIFIED COMPLAINT

-----X
FERNANDO CASTILLO LUNA,

Index No.:

Date Purchased:

Plaintiff,

-against-

POLICE OFFICER JIMMY ROMERO – SHIELD # 5558,
POLICE OFFICER FRANCESCO SCALICI – SHIELD #
7889, POLICE OFFICER SAJJAD ASAR – SHIELD 16889,
SERGEANT HILTON JEANPIERRE – SHIELD # 1205,
and “JOHN DOE” – Police Officers as yet unidentified,

Defendants

-----X

Plaintiffs, by their attorneys, **THE YANKOWITZ LAW FIRM, P.C.**, complaining of the
defendants, respectfully allege, upon information and belief:

1. At all times herein mentioned, Plaintiff **FERNANDO CASTILLO LUNA** was, and still is a resident of the County of Kings, State of New York.
2. That this action falls within one or more of the exceptions set forth in CPLR §1602.
3. That on June 25, 2022 and at all times herein mentioned **THE CITY OF NEW YORK** was, and still is a municipal corporation, with its principal offices and place of business in the County, City and State of New York.
4. That on June 25, 2022 and at all times herein mentioned the **NEW YORK CITY POLICE DEPARTMENT** was a department maintained by THE CITY OF NEW YORK, with its principal offices and place of business in the County of New York, City and State of New York.
5. That on June 25, 2022 and at all times herein mentioned **TYLER GREEN** was, a

resident of the State of New York.

6. That on June 25, 2022 and at all times herein mentioned **MANDY A. RALPH** was, and still is a resident of the County of Westchester, State of New York.

7. That on or about August 26, 2022, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof, was duly served on the Plaintiff's behalf on **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT and "JOHN DOE"**, and that, thereafter, they refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced. (A copy of said Notice of Claim is annexed hereto and incorporated herein).

8. That on December 6, 2022, pursuant to General Municipal Law 50-h, a hearing was held and the Plaintiff gave testimony, pursuant to the request of **THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT**.

9. That on June 28, 2023, and within the time prescribed by law, a sworn Second Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof, was duly served on the Plaintiff's behalf on **POLICE OFFICER JIMMY ROMERO – SHIELD # 5558, POLICE OFFICER FRANCESCO SCALICI – SHIELD # 7889, POLICE OFFICER SAJJAD ASAR – SHIELD 16889, SERGEANT HILTON JEANPIERRE – SHIELD # 1205, and "JOHN DOE" – Police Officers as yet unidentified**, and that, thereafter, they refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or

payment thereof, and that thereafter, and within the time provided by law, this action was commenced. (A copy of said Notice of Claim is annexed hereto and incorporated herein).

10. That on June 25, 2022 and at all times herein mentioned **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** employed **POLICE OFFICER JIMMY ROMERO – SHIELD # 5558, POLICE OFFICER FRANCESCO SCALICI – SHIELD # 7889, POLICE OFFICER SAJJAD ASAR – SHIELD 16889, SERGEANT HILTON JEANPIERRE – SHIELD # 1205, and “JOHN DOE” – Police Officers as yet unidentified**, as police officers, agents, servants and/or employees.

11. That on June 25, 2022 and at all times herein mentioned **THE CITY OF NEW YORK** was the owner of an unmarked **NEW YORK CITY POLICE DEPARTMENT** vehicle and/or vehicles referred to and identified in the accident report and the Notice of Claims annexed hereto.

12. That on June 25, 2022 and at all times herein mentioned, **THE CITY OF NEW YORK**, their agents, servants, and/or employees operated the aforementioned motor vehicle.

13. That on June 25, 2022 and at all times herein mentioned, **THE CITY OF NEW YORK**, their agents, servants, and/or employees managed the aforementioned motor vehicle.

14. That on June 25, 2022 and at all times herein mentioned, **THE CITY OF NEW YORK**, their agents, servants, and/or employees maintained the aforementioned motor vehicle.

15. That on June 25, 2022 and at all times herein mentioned, **THE CITY OF NEW YORK**, their agents, servants, and/or employees controlled the aforementioned motor vehicle.

16. That on June 25, 2022 and at all times herein mentioned, **NEW YORK CITY POLICE DEPARTMENT**, was the owner of an unmarked **NEW YORK CITY POLICE**

DEPARTMENT vehicle and/or vehicles referred to and identified in the accident report and the Amended Notice of Claim, annexed hereto.

17. That on June 25, 2022 and at all times herein mentioned, **NEW YORK CITY POLICE DEPARTMENT**, their agents, servants, and/or employees operated the aforementioned motor vehicle(s).

18. That on June 25, 2022 and at all times herein mentioned, **NEW YORK CITY POLICE DEPARTMENT**, their agents, servants, and/or employees managed the aforementioned motor vehicle(s).

19. That on June 25, 2022 and at all times herein mentioned, **NEW YORK CITY POLICE DEPARTMENT**, their agents, servants, and/or employees maintained the aforementioned motor vehicle(s).

20. That on June 25, 2022 and at all times herein mentioned, **NEW YORK CITY POLICE DEPARTMENT**, their agents, servants, and/or employees controlled the aforementioned motor vehicle(s).

21. That on June 25, 2022 and at all times herein mentioned, Defendant **POLICE OFFICER JIMMY ROMERO – SHIELD # 5585**, operated an unmarked vehicle assigned to the 81st Precinct, which was utilized as a motor vehicle by the New York City Police Department, with the knowledge, permission and consent of the owners **THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT**.

22. That on June 25, 2022 and at all times herein mentioned, Defendant **POLICE OFFICER JIMMY ROMERO – SHIELD # 5585**, operated an unmarked vehicle assigned to the 81st Precinct, which was utilized as a motor vehicle by the New York City Police Department, within

the scope of his employment.

23. That on June 25, 2022 and at all times herein mentioned, Defendant **POLICE OFFICER JIMMY ROMERO – SHIELD # 5585**, their agents, servants, and/or employees managed the aforementioned motor vehicle.

24. That on June 25, 2022 and at all times herein mentioned, Defendant **POLICE OFFICER JIMMY ROMERO – SHIELD # 5585**, their agents, servants, and/or employees maintained the aforementioned motor vehicle.

25. That on June 25, 2022 and at all times herein mentioned, Defendant **POLICE OFFICER JIMMY ROMERO – SHIELD # 5585**, their agents, servants, and/or employees controlled the aforementioned motor vehicle.

26. That on June 25, 2022 and at all times herein mentioned, Defendant **POLICE OFFICER FRANCESCO SCALICI – SHIELD # 7889**, operated an unmarked vehicle assigned to the 81st Precinct, which was utilized as a motor vehicle by the New York City Police Department, with the knowledge, permission and consent of the owners **THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT**.

27. That on June 25, 2022 and at all times herein mentioned, Defendant **POLICE OFFICER FRANCESCO SCALICI – SHIELD # 7889**, operated an unmarked vehicle assigned to the 81st Precinct, which was utilized as a motor vehicle by the New York City Police Department, within the scope of his employment

28. That on June 25, 2022 and at all times herein mentioned, Defendant **POLICE OFFICER FRANCESCO SCALICI – SHIELD # 7889**, their agents, servants, and/or employees managed the aforementioned motor vehicle.

29. That on June 25, 2022 and at all times herein mentioned, Defendant **POLICE OFFICER FRANCESCO SCALICI – SHIELD # 7889**, their agents, servants, and/or employees maintained the aforementioned motor vehicle.

30. That on June 25, 2022 and at all times herein mentioned, Defendant **POLICE OFFICER FRANCESCO SCALICI – SHIELD # 7889**, their agents, servants, and/or employees controlled the aforementioned motor vehicle.

31. That on June 25, 2022 and at all times herein mentioned, Defendant **POLICE OFFICER SAJJAD ASAR – SHIELD 16889**, operated an unmarked vehicle assigned to the 81st Precinct, which was utilized as a motor vehicle by the New York City Police Department, with the knowledge, permission and consent of the owners **THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT**.

32. That on June 25, 2022 and at all times herein mentioned, Defendant **POLICE OFFICER SAJJAD ASAR – SHIELD 16889**, operated an unmarked vehicle assigned to the 81st Precinct, which was utilized as a motor vehicle by the New York City Police Department, within the scope of his employment.

33. That on June 25, 2022 and at all times herein mentioned, Defendant **POLICE OFFICER SAJJAD ASAR – SHIELD 16889**, their agents, servants, and/or employees managed the aforementioned motor vehicle.

34. That on June 25, 2022 and at all times herein mentioned, Defendant **POLICE OFFICER SAJJAD ASAR – SHIELD 16889**, their agents, servants, and/or employees maintained the aforementioned motor vehicle.

35. That on June 25, 2022 and at all times herein mentioned, Defendant **POLICE OFFICER SAJJAD ASAR – SHIELD 16889**, their agents, servants, and/or employees controlled the aforementioned motor vehicle.

36. That on June 25, 2022 and at all times herein mentioned, Defendant **SERGEANT HILTON JEANPIERRE – SHIELD # 1205**, operated an unmarked vehicle assigned to the 81st Precinct, which was utilized as a motor vehicle by the New York City Police Department, with the knowledge, permission and consent of the owners **THE CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT**.

37. That on June 25, 2022 and at all times herein mentioned, Defendant **SERGEANT HILTON JEANPIERRE – SHIELD # 1205**, operated an unmarked vehicle assigned to the 81st Precinct, which was utilized as a motor vehicle by the New York City Police Department, within the scope of his employment.

38. That on June 25, 2022 and at all times herein mentioned, Defendant **SERGEANT HILTON JEANPIERRE – SHIELD # 1205**, their agents, servants, and/or employees managed the aforementioned motor vehicle.

39. That on June 25, 2022 and at all times herein mentioned, Defendant **SERGEANT HILTON JEANPIERRE – SHIELD # 1205**, their agents, servants, and/or employees maintained the aforementioned motor vehicle.

40. That on June 25, 2022 and at all times herein mentioned, Defendant **SERGEANT HILTON JEANPIERRE – SHIELD # 1205**, their agents, servants, and/or employees controlled the aforementioned motor vehicle.

41. That on June 25, 2022 and at all times herein mentioned, **MANDY A. RALPH** was

the owner of a 2021 Honda motor vehicle, bearing New York registration KJL9470.

42. That on June 25, 2022, **TYLER GREEN**, was the operator of the aforesaid 2021 Honda motor vehicle bearing New York State registration number KJL9470.

43. That on June 25, 2022 and at all times herein mentioned, **TYLER GREEN** operated the aforesaid 2021 Honda motor vehicle bearing New York State registration number KJL9470, with the knowledge, permission and consent of **MANDY A. RALPH**.

44. At all times herein mentioned, **TYLER GREEN**, managed the aforementioned motor vehicle.

45. At all times herein mentioned, **TYLER GREEN**, maintained the aforementioned motor vehicle.

46. At all times herein mentioned, **TYLER GREEN**, controlled the aforementioned motor vehicle.

47. At all times herein mentioned, **MANDY A. RALPH**, managed the aforementioned motor vehicle.

48. At all times herein mentioned, **MANDY A. RALPH**, maintained the aforementioned motor vehicle.

49. At all times herein mentioned, **MANDY A. RALPH**, controlled the aforementioned motor vehicle.

50. That on June 25, 2022, and at all times herein mentioned, **TYLER GREEN**, operated the aforesaid motor vehicle owned by **MANDY A. RALPH**, at and/or near the intersection of Ralph Avenue and Halsey Street, County of Kings, City and State of New York.

51. At all times herein mentioned, Ralph Avenue and Halsey Street, County of Kings, City and State of New York were public roadways, streets and/or thoroughfares.

52. That on June 25, 2022 while claimant **FERNANDO CASTILLO LUNA** was lawfully a pedestrian at and/or near Ralph Avenue and Halsey Street, County of Kings, City and State of New York, claimant was seriously injured when **POLICE OFFICER JIMMY ROMERO – SHIELD # 5558, POLICE OFFICER FRANCESCO SCALICI – SHIELD # 7889, POLICE OFFICER SAJJAD ASAR – SHIELD 16889, SERGEANT HILTON JEANPIERRE – SHIELD # 1205, and “JOHN DOE” – Police Officers as yet unidentified** engaged in a reckless, unsafe, hazardous and dangerous high speed chase and pursuit of the aforesaid vehicle owned and operated by **MANDY A. RALPH** and **TYLER GREEN** bearing NYS plate #KJL9470, causing, permitting and allowing said vehicle to strike and collide into several vehicles and pedestrians, including claimant **FERNANDO CASTILLO LUNA**, causing him to sustain severe and permanent injuries (See NYC Police Report and Notice of Claims annexed hereto).

53. On June 25, 2022, and at all times herein mentioned, Plaintiff **FERNANDO CASTILLO LUNA** was a pedestrian at the aforesaid location.

54. That on June 25, 2022 the aforesaid motor vehicle owned by Defendant **MANDY A. RALPH**, and operated by **TYLER GREEN**, struck and came into contact with Plaintiff **FERNANDO CASTILLO LUNA**, a pedestrian at the aforesaid location.

55. That as a result of the contact, Plaintiff **FERNANDO CASTILLO LUNA** was caused to sustain serious personal injuries.

56. That the aforesaid occurrence was caused wholly and solely by reason of the

negligence of the Defendants without any fault or negligence on the part of the Plaintiff, **FERNANDO CASTILLO LUNA** contributing thereto.

57. That Defendants, their agents, servants and/or employees were negligent, careless and reckless in the ownership, operation, management, maintenance, supervision, use and control of their aforesaid vehicles; causing, permitting and allowing the aforesaid vehicle to strike and collide with the Plaintiff, causing the Plaintiff to sustain serious and permanent injuries as a result of the aforesaid collision, due to the negligence, carelessness and recklessness of Defendants in the ownership, operation, management, maintenance and control of their aforesaid motor vehicles; in operating the aforesaid motor vehicles with a total disregard for the health, safety and welfare of others; in causing, permitting, engaging in and allowing the aforesaid high speed vehicle chase and in a careless, reckless, and negligent manner, causing the aforesaid collisions and the aforesaid vehicle to strike the Plaintiff causing him to sustain permanent injuries; in failing to timely utilize brakes; in failing to properly steer; in operating their aforesaid motor vehicles at a fast and excessive rate of speed; in failing to obey traffic signal devices; in failing to adequately and properly supervise the operators of said motor vehicles; in failing to properly and adequately instruct the drivers of the aforesaid motor vehicles; in failing to instruct the drivers of the aforesaid motor vehicles as to the proper practices and procedures in the operation of the aforesaid motor vehicles; in having negligent and improper hiring practices; in failing to properly investigate employees and potential employees; in failing to obey traffic signal lights; in failing to utilize flashing lights and activate their siren(s); in failing to avoid and prevent the aforesaid high speed chase, collisions and contact with the Plaintiff although they had the means and opportunity to avoid and prevent the aforesaid contact and collision; in failing to prevent and avoid the aforesaid

accident and injuries caused to claimant although they had the opportunity and ability to do so; and the Defendants were otherwise careless, reckless and negligent in causing, the aforesaid accident and causing the Plaintiff to sustain severe and permanent injuries; and were otherwise negligent, careless and reckless under the circumstances then and there prevailing.

58. The said vehicle^(s) owned by **THE CITY OF NEW YORK** and **NYC POLICE DEPARTMENT**, operated and/or occupied by **POLICE OFFICER JIMMY ROMERO – SHIELD # 5558, POLICE OFFICER FRANCESCO SCALICI – SHIELD # 7889, POLICE OFFICER SAJJAD ASAR – SHIELD 16889, SERGEANT HILTON JEANPIERRE – SHIELD # 1205, and “JOHN DOE” – Police Officers as yet unidentified** engaged in a high-speed chase and pursuit of **TYLER GREEN** and **MANDY A. RALPH’s** aforesaid vehicle bearing NYS Plate number KJL9470 causing, permitting and allowing said motor vehicle, to travel at a high rate of speed in a high traffic and traveled area and enter the aforesaid intersection and roadways and strike and collide into the claimant; that the claimant was seriously injured by reason of the negligence, recklessness and carelessness of **CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JIMMY ROMERO – SHIELD # 5558, POLICE OFFICER FRANCESCO SCALICI – SHIELD # 7889, POLICE OFFICER SAJJAD ASAR – SHIELD 16889, SERGEANT HILTON JEANPIERRE – SHIELD # 1205, and “JOHN DOE” – Police Officers as yet unidentified**, their agents, servants employees and/or licensees in the ownership, operation, control and maintenance of their aforesaid NYC Police Vehicle(s); in operating said motor vehicle(s) in a manner which unreasonably endangered the public and the claimant in particular; and in failing to properly steer, guide, manage and control their aforesaid vehicle(s); in failing to avoid and prevent the aforesaid collision although they had

an opportunity to prevent and avoid same; in operating their aforesaid vehicle(s) at an excessive and unsafe speed under the prevailing roadway and traffic conditions; in failing to be attentive to the prevailing traffic and roadway conditions; in failing to keep a proper lookout; in failing to properly brake and steer their vehicle; in failing to stop; in failing to operate their vehicle in a manner to avoid and prevent the aforesaid collision; in causing, permitting and allowing a reckless, unsafe, hazardous and dangerous high speed chase and pursuit under the prevailing roadway and traffic and pedestrian conditions, causing the aforesaid collisions and severe injuries to and death of people, including the severe injuries to the claimant herein; in violating the traffic and vehicle laws of the City and State of New York, the NYC Police Department rules, regulations and procedures; in being otherwise careless, reckless and negligent in causing the aforesaid collision and the injuries to the claimant herein. (See police report annexed and New York Post article annexed to Notice of Claim).

59. That by reason of the foregoing, Plaintiff, **FERNANDO CASTILLO LUNA**, sustained severe and permanent personal injuries.

60. That Plaintiff, **FERNANDO CASTILLO LUNA**, sustained serious injuries as defined by §5102(d) of the Insurance Law of the State of New York.

61. That Plaintiff, **FERNANDO CASTILLO LUNA**, sustained serious injury and economic loss greater than basic economic loss as defined by §5104 of the Insurance Law of the State of New York.

62. That by reason of the foregoing and the negligence, culpable conduct and wrongful actions of the said Defendants, Plaintiff, **FERNANDO CASTILLO LUNA**, sustained serious, severe, and permanent injuries to his head, limbs and body, still suffers and will continue to suffer

for some time, great physical and mental pain and serious bodily injury; became sick, sore, lame and disabled.

63. That by reason of the wrongful, negligent and unlawful actions of the Defendants, as aforesaid, the Plaintiff, **FERNANDO CASTILLO LUNA**, sustained serious injuries as defined in the Insurance Law of the State of New York, and has sustained economic loss greater than basic economic loss as defined in said Insurance Law.

64. That by reason of the foregoing and the negligence of the said Defendants, this Plaintiff, **FERNANDO CASTILLO LUNA**, is informed and verily believes his aforesaid injuries are permanent and he will permanently suffer from the effects of his aforesaid injuries and he will be caused to suffer permanent embarrassment and continuous pain and inconvenience.

65. That by reason of the foregoing, this plaintiff, **FERNANDO CASTILLO LUNA**, was compelled and did necessarily require medical aid and attention and did necessarily pay and become liable therefore, for medicines and upon information and belief, the Plaintiff, **FERNANDO CASTILLO LUNA**, will necessarily incur similar expenses.

66. That by reason of the foregoing, the Plaintiff, **FERNANDO CASTILLO LUNA**, has been unable to attend to his usual occupation and avocation in the manner required.

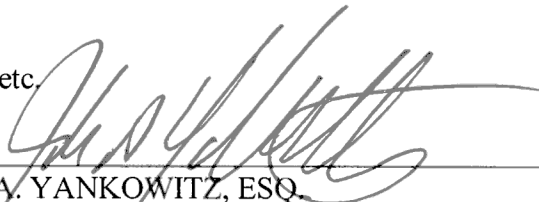
67. That by reason of the culpable conduct and wrongful, negligent and unlawful actions of the Defendants, as aforesaid, the Plaintiff, **FERNANDO CASTILLO LUNA**, was severely injured, bruised and wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled.

68. That by reason of the foregoing, Plaintiff, **FERNANDO CASTILLO LUNA**, has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants herein on all causes of action, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Great Neck, New York
September 5, 2023

Yours, etc.



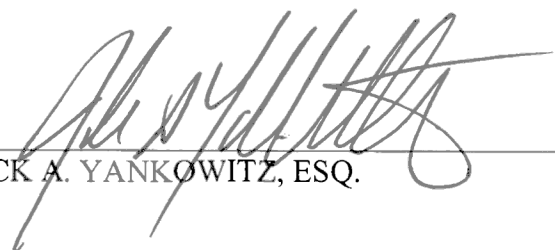
JACK A. YANKOWITZ, ESQ.
THE YANKOWITZ LAW FIRM, P.C.
Attorneys for Plaintiff
FERNANDO CASTILLO LUNA
175 East Shore Road
Great Neck, New York 11023
(516) 622-6200
Our File No. 9428 -22

ATTORNEY'S VERIFICATION

JACK A. YANKOWITZ, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at THE YANKOWITZ LAW FIRM, P.C., attorneys of record for Plaintiff, Fernando Castillo Luna. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff does not reside and is not presently in the county wherein I maintain my offices.

DATED: Great Neck, New York
September 5, 2023



JACK A. YANKOWITZ, ESQ.

Index No.: 508515/2023
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

FERNANDO CASTILLO LUNA,

Plaintiff,

-against-

POLICE OFFICER JIMMY ROMERO – SHIELD # 5558, POLICE OFFICER FRANCESCO
SCALICI – SHIELD # 7889, POLICE OFFICER SAJJAD ASAR – SHIELD 16889,
SERGEANT HILTON JEANPIERRE – SHIELD # 1205, and “JOHN DOE” – Police Officers as
yet unidentified,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

THE YANKOWITZ LAW FIRM, P.C.

Attorneys for Plaintiff(s)

The Yankowitz Law Building

175 East Shore Road

Great Neck, NY 11023

Phone No.: 516-495-7500
